

Dr. Mohammad Afsar Khan And Another v. Purvanchal Vidyut Vitran Nigam Limited, Varanasi And Others

High Court of Judicature at Allahabad · Division Bench · 8 September 2025 · WRIT - C No. - 10237 of 2025 · **Writ petition dismissed; no cause of action for a direct connection without 51% of single-point consumers applying together**

HEADNOTE

A purchaser of a shop in a multi-storey building that already has a single-point electricity connection taken by the owner/builder cannot, acting alone, compel the distribution licensee to give a direct (multi-point) connection. Under the Electricity Supply Code (Thirteenth Amendment), 2018, conversion of an existing single-point supply to individual connections requires an application by 51% of the consumers drawing electricity from that single point. Where the petitioners had only 10% of such consumers, could not show a pleading that they had not agreed to the builder taking single-point supply, and their sale deed (clause 21) recorded that the vendor had obtained a one-point connection and that the vendees would install a prepaid meter, they had no cause of action. The writ challenging the licensee's 24 March 2025 refusal, which redirected them to take supply from the owners, is dismissed. The Court did not decide whether that refusal had wrongly invoked Clause 4.28(d) rather than Clause 4.9, nor the owners' allegation of theft.

FACTUAL SUMMARY

Dr. Mohammad Afsar Khan and another took a shop in a multi-storey building by sale deed dated 17 February 2024 and applied to Purvanchal Vidyut Vitran Nigam Ltd., Varanasi, for a direct electricity connection. By letter dated 24 March 2025 the licensee refused and redirected them to obtain supply from the owners (added as respondent nos. 4 to 6), who already had a single-point connection. The petitioners wanted a direct connection, not a sub-meter through those respondents.

The owners alleged theft of electricity and said the single-point supply had been taken on prior consent of apartment/unit buyers. Uttar Pradesh Electricity Regulatory Commission (added as respondent no. 3) submitted that the rejection wrongly treated the application as under Clause 4.28(d) when the petitioners had applied under Clause 4.9. Sale-deed clause 21 recorded that the vendor had obtained a one-point connection and that the vendees would install a prepaid meter at their cost. A coordinate Bench allowed impleadment of the owners and the Commission on 28 April 2025. After listing and a peremptory adjournment on 26 August 2025, the Division Bench heard and dismissed the petition on 8 September 2025.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.9

51% of consumers on a single-point supply must apply together for conversion to multi-point; a lone shop-buyer has no cause of action for a direct connection

QUESTION

Can a purchaser of a shop in a multi-storey building compel the licensee to give a direct (multi-point) connection where the building already has a single-point supply taken by the owner/builder, and the purchaser does not command 51% of the consumers drawing from that single point?

HOLDING

No. The building already had a single-point connection availed by the owner/builder on prior consent of unit buyers. The Electricity Supply Code (Thirteenth Amendment), 2018 requires that conversion of that single-point supply to individual (multi-point) connections be applied for by 51% of the consumers drawing from the single point. The petitioners, with only 10% of such consumers, and without a pleaded case that they had not agreed to the single-point arrangement — their sale deed of 17 February 2024 (clause 21) recording the vendor's one-point connection and the vendees' obligation to install a prepaid meter — had no cause of action for a direct connection. The writ petition is dismissed. ¶ 8 Sep 2025

QUALIFIER

The 10% figure is the owners' submission, accepted for the cause-of-action finding. The Court did not extract the 13th Amendment text.

FLAG Operative dismissal is the unnumbered 8 September 2025 order (Arindam Sinha and Prashant Kumar JJ.), which reproduces paras 1–3 of the 26 August 2025 order. Licensee relied on 'clause 4.28 in part-B'; UPERC said the application was under Clause 4.9, not 4.28(d). The Court applied the 13th Amendment 51% conversion rule without resolving that numbering dispute. Source PDF also contains listing/impleadment orders of 28.4.2025, 7.5.2025 and 21.5.2025 (Saraf and Srivastava JJ.) and a 10.2.2026 order on Civil Misc. Correction Application No. 4 of 2025 (respondent description corrected to 'and others'; no change to the 28.4.2025 'builders' label).

PRINCIPLE TAGS

single-point-to-multipoint-requires-51-percent-consumers Conversion of an existing single-point supply in a multi-storey building to individual connections requires an application by 51% of the consumers drawing from that single point (Electricity Supply Code (Thirteenth Amendment), 2018). A shop-buyer with 10% support, whose sale deed accepted the vendor's one-point connection and a prepaid meter, has no cause of action for a direct connection. Writ dismissed. ¶ 8 Sep 2025

mandamus-cannot-override-statutory-distribution-scheme Mandamus for a direct connection is refused where the Code as amended already supplies the conversion path (51% of single-point consumers applying together) and the petitioners do not satisfy it. ¶ 8 Sep 2025

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 24.3.2025 REFUSAL WAS ERRONEOUS IN TREATING THE APPLICATION AS UNDER CLAUSE 4.28(D) RATHER THAN CLAUSE 4.9

UPERC so submitted (26.8.2025 para 2). The licensee reiterated Clause 4.28 in Part-B. The Court dismissed on the 13th Amendment 51% conversion rule without deciding that characterisation. ¶ 2

NOT DECIDED — WHETHER THE PETITIONERS WERE GUILTY OF THEFT OF ELECTRICITY

Alleged by the owners in the intervention application. Not tried. ¶ 1

NOT DECIDED — WHETHER THE OWNERS/BUILDERS ARE DEEMED LICENSEES

Submitted on their behalf. Not decided. ¶ 8 Sep 2025